

PROMOTING INDIVIDUAL RIGHTS AND DUTIES: CHRISTIAN PERSPECTIVE

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The Document on *Human Fraternity for World Peace and Living Together* signed between the Grand Imam of Al Azhar and Pope Francis mentions human rights with respect to the need for a relationship between East and West (1). It is "important to reinforce the bond of fundamental human rights", it said, "to achieve a dignified life to which every human being has a right" in these two spaces "avoiding the politics of double standards"(2). It is therefore necessary, it adds, to seek mutual enrichment through an exchange and dialogue of cultures. We will do so in the first two conferences this morning, one that will present the Christian perspective, Catholic to be precise, concerning the activity of the Church and her doctrine for the promotion of the rights and duties of individuals, and the second, for a debate, that will present the Muslim perspective on the same subject. The Church's activity and thinking in the field of promoting the rights and duties of individuals is gradually developing in response to social events, "the need for structural, social, political and economic transformations" (3). They have offered her in history and still offer, as we see with the activity of Pope Francis, the possibility of expressing the Magisterium "in clearer and more incisive language according to the political and social reality" (4).

To explain it, knowing that the subject is very broad and that, to be exhaustive, it would be necessary to refer to a multitude of texts published by institutional groups of bishops, Episcopal Conferences worldwide, dioceses, associations and groups of Christians, we have chosen to show how the popes in their encyclicals and the Second Vatican Council expressed the doctrinal principles on which the Church's activity in this field is based. These form the essential texts of the Church's social doctrine on human rights and duties which the formerly named *Pontifical Council for Justice and Peace*, known today under Pope Francis as the *Dicastery for Promoting Integral Human Development*, has set out in a *Compendium* published under the pontificate of Pope John Paul II. This includes what the Catholic Church declares, requests and recommends on questions concerning social life and the principles that

animate her when she delivers a social teaching which, "at first glance, is not within her competence", but which makes clear why she seeks "dialogue and collaboration to serve the common good" (5). We will show at the same time the historical development of the Church's constant commitment to social issues as she seeks to proclaim, form consciences and be a critical pole for societies through reference to the natural law she receives from her faith in God the Creator and leads her to speak of human rights and the duties to which they are linked.

1. A historical development

It is the evangelical message that has inspired the Church's action from the first centuries and explains the constancy of its affirmation of the value of man due to its roots in God's creative will. The fundamental contribution of the 16th century theologians Vitoria and Suarez, who had a major influence on the notions of international community and human rights by developing the thought of Saint Thomas, shows this (6). The declarations and actions of the Catholic Church concerning human rights are now part of the history of ideas in the West, where conceptions have gradually developed that affirm the central place of the individual who makes his choices with a conscience informed by ethical principles that the Church proclaims as a consequence of the transcendent nature of his status of a person. This was an eventful and difficult challenge for the Catholic Church because, from the 17th century onwards, Popes were confronted with the emergence of philosophical currents - which found development in Protestant ecclesiologies (7) - most of which were opposed to the Church's influence on consciences. They also nourished the political ideas proclaimed in the *Déclaration des droits de l'homme et du citoyen* of the French Revolution which, despite the will of the revolutionaries to write a text of "religious and sacred character" (8), was received by the Popes as a rejection of Catholic doctrine concerning the role of the Church in determining the founding principles of the human community (9).

The encyclicals emanating from the Roman Pontiffs at that time, condemning the affirmation of human rights, recalled the divine foundation of the dignity of human persons. They opposed ideas that advocated the self-determination of each individual and the political power that protects him in the definition of his rights. The *Pontifical Council for Justice and Peace*, in commenting on the statements of the Second Vatican Council, acknowledged how difficult this long period, obscured by jurisdictional issues, has been: "The historical process of affirming human rights in both secular and ecclesial society has been, for some centuries, hindered and embarrassed by certain attitudes and institutional structures that have made its development difficult" (10). The change in the Church's discourse on human rights can be measured when John XXIII, in his encyclical *Pacem in Terris* of 1963, welcomed the *Universal Declaration of Human Rights* as "one of the most important acts accomplished by this institution" (11). Paul VI described it as an "essential heritage of humanity" (12) and John Paul II as "a true milestone on the way to the moral progress of humanity" (13).

2. The Church's commitment to social issues

In the meantime, from the 19th century onwards, the social magisterium of the Church had changed, as is evidenced by the encyclicals of Pope Leo XIII *Immortale Dei*, *Sapientiae christianae* and *Libertas* (14). In the latter, which takes the best of liberal ideas from a Catholic perspective of the State and society, the Pope changes the way the Church addresses the State. It has a legitimate independence in its order but must recognize the Church's right to declare the human rights that belong to individuals, in the name of a transcendence that she has a duty to affirm (15). That is why it is committed to the principle of Religious freedom that is a right the Church has always claimed for herself (16). Two central elements of the Church's action on human rights are now more evident: human rights have a foundation in divine transcendence and the Church has a duty and therefore the right to recall human societies of this.

The encyclical *Rerum novarum* of Pope Leo XIII was in response to questions raised by the industrial revolution and the increase of the proletariat (17). The Pope demands for workers the right to work, a fair wage, the right to a fair rest, the protection of women and children in the world of work, the right of association and respect for the person of workers (18). This conception of human rights that the State must respect because of their natural and therefore universal and imprescriptible nature was accompanied by a claim for recognition of the Church's ability to define these rights in each historical period and to guarantee their respect. This conception was opposed to the conception of a State which determined its own organization without any other reference than the general will, without taking into account the Catholic, and therefore religious, conception of the social organization of the human community.

The encyclicals of Pius XI would have a similar outlook (19). They are rich in claims for the recognition of human rights and recall the public authority of its obligation to ensure the development of the political, economic and social conditions necessary for the concrete recognition of human rights (20). We know that this Pope intervened when totalitarian states appeared. But the encyclical took up the conception of the role of the Catholic Church, which has the duty to emphasize the natural and imprescriptible rights of the person and also to interpret them in history. "God has endowed (man) with many and varied prerogatives: the right to life, to bodily integrity, to the means necessary for existence; to reach his end in the path traced by God; the right of association, property and the right to use this property. As marriage and the right to its natural use are of divine origin, so the constitution and fundamental prerogatives of the family have been determined and fixed by the Creator himself and not by human will or economic facts" (21).

3. The conciliar development

The two elements described above concerning, on the one hand, the conception of natural and imprescriptible human rights and, on the other hand, the duty and the right of the Church to promote

them by recalling their origins, are the key to understanding the maturation of the Church's discourse which appears in the papal texts of the second part of the 20th century and in the constitutions and declarations of the Second Vatican Council. Pope Pius XII, who exercised "great influence on the development of world public opinion" (22) during the terrible historical period of the Second World War, denounced violations of fundamental human rights. The Pope promoted a conception of citizenship of the political subjects of States and affirmed the dignity of the person who has political and cultural rights. His proposals for the reconstruction of the human community were concrete, enumerating new rights (23) as well as the encyclicals of John XXIII, the all important *Pacem in Terris* which sought to support the *Universal Declaration of Human Rights* (24). "Any well-regulated and productive association of men in society", says John XXIII, "demands the acceptance of one fundamental principle: that each individual man is truly a person, namely a nature endowed with intelligence and free will. As such he has rights and duties, which together flow as a direct consequence from his nature. These rights and duties are universal and inviolable, and therefore altogether inalienable" (24). And, he adds, "we consider man's personal dignity from the standpoint of divine revelation", because the Church speaks of men "made...sons and friends of God, and heirs to eternal glory" (25). The same perspectives are found in Paul VI's encyclicals, in particular *Populorum Progressio* and *Octogesima Adveniens*.

These positions of the Catholic Church prepared or found a solemn affirmation in the Constitution *Gaudium et Spes* of the Second Vatican Council (26). We find there two of the above-mentioned elements present in previous pontifical texts. The first is the greatness of man's vocation, dignity and fundamental rights because of the operative presence in him of a divine seed. The Council affirms that, in societies, "there is a growing awareness of the exalted dignity proper to the human person, since he stands above all things, and his rights and duties are universal and inviolable. Therefore, there must be made available to all men everything necessary for leading a life truly human, such as food, clothing, and shelter; the right to choose a state of life freely and to found a family, the right to education, to employment, to a good reputation, to respect, to appropriate information, to activity in accord with the upright norm of one's own conscience, to protection of privacy and rightful freedom even in matters religious" (27).

The second element is the affirmation of the Church's duty of cooperation in safeguarding them by contributing to the establishment of a universal fraternity that corresponds to this vocation: "The joys and the hopes, the griefs and the anxieties of the men of this age, especially those who are poor or in any way afflicted, these are the joys and hopes, the griefs and anxieties of the followers of Christ. Indeed, nothing genuinely human fails to raise an echo in their hearts... that is why this community realizes that it is truly linked with mankind and its history by the deepest of bonds" (28). Therefore, it is affirmed: "The Church, by reason of her role and competence, is not identified in any way with the political community nor bound to any political system. She is at once a

sign and a safeguard of the transcendent character of the human person" (29). It is understandable why, in addition to *Gaudium et Spes*, there is the Declaration *Dignitatis humanae* on religious freedom, which, among other things, includes the ecclesial conception of secularism.

4. The Church's mission of proclamation, formation and critical judgment

This conception of cooperation between the political community and the Church, which are "independent of each other and autonomous... albeit in different ways, in the service of the personal and social vocation of the same men" (30), explains two statements that directly concern the promotion of human rights. The first has an anthropological character. Who knows the human person better than those who have faith and see him rooted in transcendence? Paul VI, who described the Church as an "expert in humanity" (31), is not afraid to say that we could gather a code of rights that the Church recognizes for man as such, but that it "will always be difficult to define the extent of those that man holds from his elevation to the supernatural order..." (32). Earlier, Pius XII had stated in a 1944 radio message: "The dignity of man is the dignity of the image of God" (33). The second statement is institutional. Considering human dignity in the light of revealed truths, the Church understands the collaboration in the protection of human rights as a duty of its apostolic mission in the world because "man has also received from his creator the right to the integral development of his own person" (34).

This duty can be exercised in three directions. The first is the *declaration* of the transcendent character of the human person. The Church continues the prophetic function of its founder who asks her to work for the liberation of the poor, the oppressed, the marginalized and to build already on earth "a world where every man without exception of race, religion, nationality, can live a more human life, free from the servitudes that come to him from men and from an insufficiently controlled nature" (35). The second is the exercise of a *formative mission*, especially among the younger generations. The Church makes a work of "true education because, as the Second Vatican Council states, she forms the human person "with a view to its highest end and the good of the groups of which man is a member and in whose service his activity as an adult will be exercised" (36).

Finally, in all magisterial texts, the Church affirms her right to *make a moral judgment* on social and political activities and rules - this is the third direction - "when the fundamental rights of a person or the salvation of souls require it. In this, she should make use of all the means—but only those—which accord with the Gospel and which correspond to the general good according to the diversity of times and circumstances" (37). In the first encyclicals, this claim was jurisdictional. It was attenuated over time by the transition from the claim of the *libertas Ecclesiae* to the *libertas religiosa*. Thus the Synod of bishops of 1974 recognized that as a "religious and hierarchical community", the Church was called "to offer concrete solutions in the social, economic

and political spheres for justice in the world. Her mission involves defending and promoting the dignity and fundamental rights of the human person" (38).

5. The reference to natural law

This critical function appears in the encyclicals of both Popes John Paul II and Benedict XVI. In their interventions for the protection of the right to life, which John Paul II considers not only as the first right but also as the measure of all others and their source, they have highlighted in a renewed way the importance of the natural law that Pius XII referred to as "the unshakeable rock" (39) which assures the legislator of achieving a balanced social life. The Church feels the task to recall the existence of natural law as the source of the recognition of rights that concretely realize the need for justice. This conviction led John Paul II and his successor, then Card. Ratzinger, to ask the *International Theological Commission* to prepare a document on this principle, in order to explain the Church's meaning on the foundation of universal ethics (40).

This document states that the Catholic Church is aware of the need for human beings to seek in common the rules of living together in justice and peace, and wishes to share with the religions, wisdoms and philosophies of our time the resources of the concept of natural law. "We call *natural law*, says the Commission, the foundation of a universal ethic which we seek to draw from the observation of and reflection on our common human nature. It is the moral law inscribed in the heart of human beings and of which humanity becomes ever more aware as it advances in history. This natural law is not at all static in its expression. It does not consist of a list of definitive and immutable precepts. It is a spring of inspiration always flowing forth for the search of an objective foundation for a universal ethic" (41).

In the same perspective, Benedict XVI declares that there is "an ecology of man. Man too has a nature that he must respect and that he cannot manipulate at will. Man is not merely self-creating freedom. Man does not create himself. He is intellect and will, but he is also nature, and his will is rightly ordered if he respects his nature, listens to it and accepts himself for who he is, as one who did not create himself. In this way, and in no other, is true human freedom fulfilled (42). That is why, the Commission says, if "the *Universal Declaration of Human Rights* constitutes one of the most beautiful successes of modern history, remains one of the highest expressions of human conscience in our times and offers a solid basis for promoting a more just world, nevertheless, the results have not always been as high as the hopes. Above all, a tendency comes to the fore to reinterpret human rights, separating them from the ethical and rational dimension that constitutes their foundation and their end, in favor of pure utilitarian legalism" (43).

By exercising the critical function that we have mentioned above and in the name of their prophetic mission, the Popes feel the

duty to raise the limits of legal positivism, that Pope Benedict described as "a common culture and a common basis for law-making, reducing all the other insights and values of our culture to the level of subculture" (44). The call is addressed to legislators in order that they exercise their responsibility to respect human rights by prioritizing moral elements, then limiting their decisions. "A legislator can only act legitimately within certain limits, says the International Theological Commission, which derive from the dignity of the human person, and in service to the development of what is authentically human. Now, the legislator cannot abandon the determination of what is human to extrinsic and superficial criteria, as would be the case, for example, if he were to legalize, on his own, everything that is possible in the realm of biotechnology. In brief, he must act in an ethically responsible manner. Politics cannot cut itself off from ethics nor can civil laws and the juridical order prescind from a higher moral law" (45).

6. Human rights and duties

The link between ethics and responsibility is one of the fundamental elements of the magisterial texts on the Church and human rights. First of all, it is the fact that we cannot talk about rights without talking about duties. In his message to the United Nations on the occasion of the 25th anniversary of the *Universal Declaration of Human Rights*, Paul VI stated that "if fundamental human rights represent a common good of all humanity on the way to peace, it is necessary for all men, ever more aware of this reality, to know well that in this field to speak of rights is also to state duties" (46). John XXIII already recalled that natural law confers rights and imposes duties. "Thus, for example, the right to life", he said, "entails the duty to preserve it; the right to a decent existence entails the duty to conduct oneself with dignity; the right to freely seek the true responds to the duty to deepen and broaden this search... Those who, in claiming their rights, forget their duties or do not fulfill them perfectly, risk demolishing with one hand what they are building with the other" (47). Then, the notion of responsibility and the link between duties and rights compel us to link human rights to the existence of community life.

The magisterial texts have highlighted the growth of individualism in Western societies and thus the evolution of the conception of human rights, which was first conceived as an achievement offered to the individual. John Paul II denounced the fact that the proclamation of human rights is based on a "conception of freedom that exalts the singular individual in absolute terms" (48). For Christianity and religions that have the same communal cultural heritage, man is a being of relationship in the image of the Creator and realizes what he is in the communities to which he belongs, for some naturally and for others voluntarily, by accepting the principle of alterity as required by living with others... Pope Francis also declares: "Today there is a tendency to claim ever broader individual rights – I am tempted to say individualistic; underlying this is a conception of the human person as detached from all social and anthropological contexts, as if the person were a *monad*, increasingly unconcerned with other

surrounding *monads*". The equally essential and complementary concept of duty no longer seems to be linked to such a concept of rights. As a result, the rights of the individual are upheld, without regard for the fact that each human being is part of a social context wherein his or her rights and duties are bound up with those of others and with the common good of society itself (49).

The Church bases her call to the ethics of fraternity, love, communion and solidarity on this conception. It also attaches to this vision, always based on natural law, a conception of its existence in democratic societies where laws must be the expression of the profound nature of man. The essence of the Catholic Church is "to be a community" and the action it carries out and promotes aims to create on earth, already, the communion desired by God for humanity. In the development of the maturation of the conceptions of the social doctrine of the Catholic Church, Pope Francis appears as the one who, through his actions rather than through his words, has shown that to talk of the rights and duties of man means to talk of the rights and duties not only of the human person as such, but also of the communities in which he lives. In the *European Parliament*, he recalled that "To talk of *transcendent human dignity* thus means appealing to human nature, to our innate capacity to distinguish good from evil, to that 'compass' deep within our hearts, which God has impressed upon all creation. Above all, it means regarding human beings not as absolutes, but as *beings in relation*" (50). This statement of Pope Francis is an affirmation of the importance of human rights for the Church and of its integration into the Church's contribution to their respect, but, most importantly, emphasizing the insertion of a person in a community, he makes clear why he is so attached to the protection of those who, belonging to human communities, are excluded from them.